

24CHCV00674 24CHCV00674

County: los-angeles

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Case Number: 24CHCV00674 Hearing Date: July 8, 2026 Dept: F47

Dept. F47

Date: 7/8/26

TRIAL DATE: 10/12/26

Case #24CHCV00674

MOTION TO

COMPEL NEUROLOGICAL IME

Motion filed on 3/2/26.

MOVING PARTY: Defendants

Smart & Final Stores LLC & Chedraui USA, Inc.

RESPONDING PARTY: Plaintiff Carmen Harper

NOTICE: ok

RELIEF REQUESTED: An order compelling Plaintiff

Carmen Harper to appear for a physical neurological independent medical examination.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of a slip and fall incident that

occurred on 7/4/22 at a Smart & Final store in Northridge, California. Plaintiff Carmen Harper (Plaintiff) alleges that she slipped and fell on ice resulting in personal injuries. Plaintiff's complaint alleges one cause of action for premises liability against Defendants Smart & Final LLC and Chedraui USA, Inc. (collectively, Defendants).

In discovery responses, Plaintiff identified injuries including "myelomalacia, and/or aggravation of myelomalacia," and claims affected body areas include neck, back, and legs, with gait and balance issues and intermittent cane use. (Kosch Decl., Ex.2). Plaintiff also indicated she experienced paralysis on the date of the incident. *Id.* Further, Plaintiff has indicated that she continues to treat with neurosurgeon Rollin Hu, M.D. *Id.* Defendants have already completed an orthopedic IME of Plaintiff.

Defendants requested that Plaintiff stipulate to another neurological IME; however, Plaintiff refused.

Therefore, on 3/2/26, Defendants filed and served the instant motion seeking an order compelling Plaintiff to appear for a physical neurological independent medical examination. Plaintiff has opposed the motion. Defendants have not filed a reply to the opposition.

ANALYSIS

In personal injury actions, defendants are entitled to one physical examination of the plaintiff.

CCP 2032.220(a). The court may

order additional examinations upon a showing of good cause. CCP 2032.310; CCP 2032.320. When a plaintiff claims injuries crossing

medical specialties, courts allow additional IMEs when reasonably necessary to test the nature, extent and causation of claimed damages. See *Vinson* (1987) 43 C3d 833, 840; *Shapira* (1990) 224 CA3d 1249, 1255.

Without any authority (e.g. legal or expert), Defendants conclude:

"An orthopedic exam is not a substitute for a dedicated neurological evaluation. Orthopedic assessment centers on musculoskeletal structure and mechanics; neurology evaluates cord/nerve dysfunction, neurological deficits, and related functional sequelae. Because Plaintiff claims spinal cord-related pathology and neurologic deficits,

a neurologist's evaluation is materially distinct and necessary.”

(See Motion, p.5:11-16).

However, Defendants fail to acknowledge that the report from Ardalan Nourian, M.D., a board-certified orthopedic surgeon, who conducted the defense medical examination on 8/15/25, includes a section which specifically addresses “Neurologic Examinations.” (See Oran Decl., Ex.1, p.4). Defendants fail to explain why the examination by Dr. Nourian and his subsequent report are insufficient to cover Plaintiff's neurological injuries.

Additionally, a motion for an additional medical examination must “specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” CCP 2032.310(b). Here, the motion leaves the time and location of the proposed examination to be determined.

(See Motion, p.6:3-6; proposed Order, p.2:8-9). The motion also fails to adequately describe the manner, conditions, scope and nature of the examination. Instead, the motion vaguely states that the examination will be limited “to neurological conditions/injuries allegedly caused or aggravated by the incident, including claimed myelomalacia, gait/balance deficits, cervical neurologic complaints, and related functional limitations” and “[c]onfirming compliance with CCP section 2032 requirements (no invasive procedures absent further order/stipulation; no imaging unless agreed or separately ordered). (See Motion, p.6:7-11; proposed Order, p.2:10-17).

CONCLUSION

The motion is denied.